SHAREit Privacy Notice

Effective Date:September 10th ,2024

At SHAREit, we recognise that privacy is important. This Privacy Notice ("**Notice**") describes how Smart Media4U Technology Pte. Ltd., with its registered address at 6A Shenton Way, #05-02 Downtown Gallery, Singapore （068815） ("**Smart Media4U**", "**we**", "**our**" or "**us**") collects, processes, and protects personal data about you through the SHAREit App (the "**App**"), www.ushareit.com, and all other Smart Media4U websites and applications (collectively, the "**Services**" or "**SHAREit**") that link to this Notice. This Notice also describes your rights in relation to your personal data.

If you have any questions about this **Notice** or how we use your data, our details are provided in the "Contact Us" section below.

This **Notice** may be provided in more than one language. In the event of any conflict, where permitted under local law, this English language version of the Notice shall prevail.

1. PERSONAL DATA THAT WE COLLECT

Personal data is information, or a combination of pieces of information about you. We collect personal data from a variety of sources, including from you directly (e.g., when you contact us), information we generate about you in the course of our relationship with you, and information we collect about you from other sources.

We may also collect certain information about you as required by law, or as a consequence of our contractual relationship. Failure to provide this information may prevent or delay the fulfillment of these obligations. We will inform you when certain data is compulsory for the access or use of the **Services** and the consequences of the failure to provide such data.

Information you provide to us

We collect the following categories of personal data that you provide to us:

(a) Personal details, which includes your age range, gender, nickname;

(b) Contact details, which includes your email address when you create an account or communicate with us;you may choose to provide us your phone number or payment information when you use certain Services such as participating in-app activities;

(c) Authentication and identification information, which may include your user identification number, image;

(d) Transactional information, which includes your requests, queries, or complaints when you use our subscription service or participate in reward activities;

(e) Content uploaded by you, which may include videos, pictures;

(f)Actions taken by you or your activity in our **App**, which include the following: like, share, report, download, login history, search history, feedback; and

(g) Any information you include in your publicly visible app profile or which you or others make available to us or the public, which includes your social media profile data if you use your social media account to log in to the **Services** or feedbacks you leave on the **App**.

*Information we collect automatically as you access or use our **Services***

We collect the following categories of personal data automatically, including:

(a) internet or other electronic network activity information, such as the data we receive when you interact with our **App** (e.g., your search history, log data, or actions you take within the **App**) or information about your device (e.g.,

your identification number, Device ID, Android ID, Google Advertising ID, Hardware Serial Number, Device Model, Operating system, System language and region) ,we will access the inventories of the other apps you have installed on the device with your permission, but will not collect and upload any such data to the cloud server we operate; If you want to manage or search the files stored in your device, we may need your consent through pop up notifications or **App** settings (if any) to access your device to comply with your request. This consent is only for the features mentioned above. We will not automatically collect, upload, modify or delete any content in your device.

(b) subject to requirements under applicable law, your IP addresses, network carrier and network type; coarse geo-location data we receive based on your Internet Protocol (IP) address or Wi-Fi SSID;

(c) Your notification bar related information with your permission, and

(d) We may collect crash logs (such as the time of the crash, the device used, and the actions taken prior to the crash), diagnostics and other app performance data to understand and address technical issues that may occur while using our **Services**.

Information we receive from other sources

We may receive and process personal data about you from other sources, including from publicly available sources. For example, we may receive personal data about you from commercially available sources, such as public databases (where permitted by applicable law), and third-party services (such as third-party social media companies, advertising partners and analytic providers).

2. HOW WE USE YOUR PERSONAL DATA AND THE BASIS ON WHICH WE USE IT

We use your personal data for the purposes described in the below table. In addition, we must have a legal basis to process your personal data, as specified under applicable laws. In most cases, the legal basis will be one of the following:

(a) as consented by you in respect of this Notice;

(b) to fulfil our contractual obligations to you, for example to provide the services you request;

(c) to comply with our legal obligations, for example to obtain proof of your identity to enable us to meet our fraud prevention and anti-money laundering obligations;

(d) to improve our services and user experience;

(e) where permitted under applicable laws, to meet our legitimate interests, for example, to carry out data analysis to ensure the stability and security of our Services and prevent crime, fraud and misuse of our Services;

When we process personal data to meet our legitimate interests, we put in place robust safeguards to ensure that your privacy is protected;

(f)we may obtain your separate consent to collect and use certain types of personal data when we are required to do so by law (for example, in relation to our direct marketing activities). If we ask for your consent to process your personal data, you may withdraw your consent at any time by contacting us using the details at the "Contact Us" section below; and

(g) as otherwise may be permitted under applicable laws.

The provision of your personal data may be necessary for the purposes of entering into a contract with us or receiving/using the **Services** or certain functions and features you request, or may otherwise be voluntary. If you do not wish to provide your personal data to us, we may not be able to (a) provide the service you request, or (b) tell you about the services we offer.

If you are located in the EU or UK, you may refer to the legal basis for processing purposes under EU and UK data protection laws as outlined in the third column in the following table.

Purpose	How do we use personal data for this purpose?	Legal Basis under EU/UK data protection laws
Identification and authentication	**We use your personal data to verify your identity and create a profile for you when you register with us, identify your device, access and use our Services, or otherwise engage with us, and to ensure the security of your personal data.**	**Using your personal data in this way is necessary for us to perform our contractual obligations to you and to provide you with the requested Service.**
Contractual obligations	**We use your personal data to perform our contractual obligations to you under our terms and conditions of use or to take steps at your request prior to entering into such contract.**	**Using your personal data in this way is necessary for us to perform our contractual obligations to you and to provide you with the requested Service.**
Service operations	**We process your personal data to provide the Services that you request, such as to connect you with other users; We access the inventories of installed apps on your device to provide you with the App's core functionality, which are peer-to-peer transmission service (with possible installation initiated by you thereafter) and the file management service.**	**Using your personal data in this way is necessary for us to perform our contractual obligations to you and to provide you with the requested Service.**
Service improvements	**We analyse usage information, including site analytics, to continually improve the user experience.**	**It is necessary for our legitimate interests to analyse usage information in order to improve our Services and your user experience.**
Communications and customer service	**Communications may include providing information to you about changes to the terms and conditions, updates regarding our Services, or responses to questions you pose. We also process your personal data to provide customer service support to you in connection with our Services.**	**It is necessary for our legitimate interests to inform you about changes to our terms and conditions, updates to our Services and respond to questions or communications that you send to us. It is necessary for our legitimate interests to provide customer support to you in connection with our Services, and also necessary for performance of our contract with you.**
Advertising and marketing	**We may use your personal data to build a profile about you, to understand your preferences, and to help determine which marketing materials (for example, region- or sector-focused) would be of interest to you. Where required by law, we will obtain your consent to send such marketing materials; You can also request restriction or rejection of it through our App.**	**Where necessary under applicable laws, we will process your personal data on the basis of your consent. For example, we will obtain your consent prior to sending you marketing messages.** It is also necessary for our legitimate interests to understand your preferences and to provide you with information that we believe would be of interest to you.

Purpose	How do we use personal data for this purpose?	Legal Basis under EU/UK data protection laws
Security	**We may use your personal data for purposes such as security maintenance.**	**It is necessary for our legitimate interests to protect the security of our App and Services.**
Exercising our Rights	**We may use your personal data to exercise our legal rights where it is necessary to do so, for example to detect, prevent, and respond to intellectual property infringement claims or violations of law.**	**It is necessary for our legitimate interests to process personal data for the purposes of exercising and defending legal claims and exercising our rights. Processing personal data may also be necessary to ensure compliance with our legal obligations.**
Complying with our obligations	**We may process your personal data to carry out fraud prevention checks or comply with other legal or regulatory requirements, when required by law.**	**It is necessary for our legitimate interests to process personal data for the purposes of protecting the security of our Service and protecting against fraud. Processing personal data may also be necessary to ensure compliance with our legal obligations.**
Customising your experience	**We may use your personal data to improve your experience of the Services, such as by providing interactive or personalised elements on the Services and providing you with content based on your interests. You can also request restriction or rejection of it through our App.**	**It is necessary for our legitimate interests to provide you with information and personalised features that we believe would be of interest to you.**

3. HOW AND WHEN WE SHARE YOUR PERSONAL DATA

We may share your personal data as follows:

(a) With our service providers and other third parties that perform services on our behalf and support our business operations in connection with our **Services**. For example, we may partner with companies to send marketing messages, support email services, and analyse information. These third parties which may receive and process your personal data may include: (i) cloud service providers for the purposes of storing and operating data, as necessary for delivering our **Services**; (ii) fraud prevention agencies in order to detect, prevent or resolve fraud, security or technical issues in connection with our **Services**; and (iii) other third parties that provide services to us, such as payment service providers when we hold in-app activities from time to time. The third parties that process your personal data on our behalf will use your personal data in accordance with the agreement we have in place with them and for the purposes described in this **Notice**.

(b) With advertisers and marketing partners in order to display advertisements on our **App** and support our business, to show how many users of the **App** have clicked or viewed an advertisement, and analytics providers for the purposes of measurement, analytics, engagement technologies and optimisation of our **Services**.

(c) With members of our group companies, including our affiliate companies as well as joint venture partners, for the purposes of processing, analysing, or storing your information or otherwise as needed to provide the **Services** to you or for the purposes set out in this Notice.

(d) In certain circumstances, we may be required to disclose or share your personal data with law enforcement agencies, courts, other government authorities (whether in your jurisdiction or abroad) or other third parties where we or any of our affiliates believe it is necessary for us to do so to comply with a legal or regulatory obligation, or otherwise to protect our rights or the rights of any third party.

(e) With potential transaction partners, service providers, advisors, and other third parties in connection with the consideration, negotiation, or completion of a corporate transaction in which we are acquired by or merged with another company or we sell or transfer all or a portion of our assets or business. Should such a sale or transfer occur, we will use reasonable efforts to require the entity to which we transfer your personal data to use it in a manner consistent with this **Notice**.

4. INTERNATIONAL DATA PROCESSING & TRANSFER

The information we collect from you is stored in Singapore. Where permitted under applicable laws, your personal data may be transferred to, stored, and processed outside of your jurisdiction. If you are a user of the **Services** located in the EU or UK, your personal data may be transferred to a country that is not regarded as ensuring an adequate level of protection for personal data under European Union law / by the European Commission or under UK law / by the UK Government. This includes jurisdictions such as Singapore.

We have put in place appropriate safeguards (such as contractual commitments) in accordance with applicable legal requirements to provide adequate protection for your personal data. For more information on the appropriate safeguards in place, and to obtain a copy of such safeguards, please contact us at the contact information below.

5. DATA SECURITY AND RETENTION

We implement technical and organisational measures to ensure a level of security appropriate to the risk to the personal data we process. These measures are aimed at ensuring the ongoing integrity and confidentiality of personal data. We evaluate these measures on a regular basis to ensure the security of the processing.

Our Services may contain links to and from third party websites or services. Please note that if you follow a link to any of these third party websites or services, they will have their own terms of use and privacy policies, and we do not accept any responsibility or liability for these policies. Please read these policies before you submit any personal data to or otherwise use such third party website or services.

We retain your personal data for as long as we have a relationship with you. After our relationship ends, we only retain your information as long as required or permitted by law. We may also retain records to investigate or defend against potential legal claims, deal with complaints or official inquiries or investigations regarding the Services, or maintain business records for analysis and/or audit purposes. We will delete, destroy or anonymize your personal data when: (i) the relevant service/feature/function for which the personal data was collected or used, is no longer available or removed; (ii) it is no longer necessary to retain the personal data for the purpose for which that personal data was collected; (iii) it is no longer necessary to retain the personal data for legal or business purposes; and (iv) it is not necessary to retain the personal data for other legitimate interests.

6. YOUR RIGHTS OVER YOUR PERSONAL DATA

You have certain rights regarding the personal data we hold about you, subject to applicable law. These may include the following rights:

(a) <u>access</u> – confirm whether your personal data is processed by us, and if it is, to request a copy of your personal data and information relating to how it is processed;

(b) <u>rectify</u> – request any inaccuracies in the personal data we hold about you be corrected or any incomplete personal data we hold about you to be completed;

(c) erase – in certain circumstances, request that we erase your personal data from our records;

You can delete the content that you have posted to your account by signing into SHAREit application and use the Delete button. We also provide tools in Settings - Data and Storage -that allow you to clean your caches. For permanently delete your account:

1. Sign in the SHAREit app.
2. Tap the Profile button at the top, enter the Account Center.
3. Tap Delete Account and follow the instructions to delete your account.

It may take up to 30 days from the time we receive your removal request to delete your account. In order to protect your privacy, we may also require additional information or documents from you to verify your identify before we process your request. In addition, you may contact us pursuant to Section 8 (Contact Us) to exercise your rights.

(d) restrict – in certain circumstances, request that your personal data is no longer processed by us;

(e) object – where we process your personal data on the basis of our legitimate interests, you have the right to object to this. However, we may continue to process your personal data if you have objected where we have compelling legitimate grounds to continue such processing or for the establishment, exercise or defence of legal claims;

(f)direct marketing - you have the right to ask us to stop processing your personal data for direct marketing purposes;

(g) portability / transfer – in certain circumstances, request to receive personal data concerning you, which you have provided to us, in a structured, commonly used and machine-readable format and you may have the right to transmit that data to you or another third party you have chosen;

(h) withdraw your consent – where we are relying on your consent to process your data, you can request to withdraw your consent at any time;

(i) automated decision making - in certain circumstances you have the right to request that you are not subject to automated processing of personal data, which produces a legal effect or similarly significantly affects you; and

(j) lodge a complaint –We encourage you to contact us to update or correct your information if it changes or if the personal data we hold about you is inaccurate. Please note that we may require additional information from you in order to honour your requests. You have the right to lodge a complaint with your local data protection authority. If you are in the United Kingdom, this is the Information Commissioner's Office (**https://ico.org.uk/**). If you are located in the European Economic Area (EEA), the contact details for data protection authorities in your jurisdiction are available here (**https://edpb.europa.eu/about-edpb/about-edpb/members_en**).

If you would like to discuss or exercise any rights you may have under law, please contact us at the contact details below.

7. CHILDREN'S INFORMATION

The **Services** are not directed to children, and we do not knowingly collect any personal data from children under the age of 13 (or such legally required age of consent as defined under applicable laws) or knowingly allow such person to register on our Services. In the event that we are notified that we have collected personal data from a child of or under the age of 13 (or such legally required age of consent as defined under applicable laws) without parental consent, we will suspend the account and delete relevant information as quickly as possible. If you believe that we might have any information from a child of or under 13 (or such legally required age of consent as defined under applicable laws), please contact us at the contact details provided below.

8. CONTACT US

Smart Media4U is responsible for the personal data **SHAREit** collects and processes. If you have questions or concerns regarding the way in which your personal data has been used or would like to exercise any right, please contact us at: ***feedback_android@ushareit.com***.

We endeavour to work with you to obtain a fair resolution of any complaint or concern about privacy. If, however, you believe that we have not been able to assist with your complaint or concern, you may have the right to make a complaint to the data protection authority of your country of residence.

Local representatives:

For users in UK, Smart Media4U Technology, PTE. LTD. has appointed EDPO UK Ltd as its UK GDPR representative in the UK. You can contact EDPO UK regarding matters pertaining to the UK GDPR by writing to EDPO UK at 8 Northumberland Avenue, London WC2N 5BY, United Kingdom.

For users in the European Union Smart Media4U has appointed European Data Protection Office (EDPO) as its GDPR Representative in the EU. You can contact EDPO regarding matters pertaining to the GDPR by writing to EDPO at Avenue Huart Hamoir 71, 1030 Brussels, Belgium.

9. CHANGES TO THE NOTICE

You may request a copy of this **Notice** from us using the contact details set out above. We may modify or update this **Notice** from time to time.

If we change this **Notice**, we will notify you of the changes. Where changes to this Notice will have a fundamental impact on the nature of the processing or otherwise have a substantial impact on you, we will give you reasonable advance notice through the **App** so that you have the opportunity to exercise your rights (e.g. to object to the processing) or to terminate your use of the **Services**.

10. INDONESIA-SPECIFIC TERMS

If you are using our **Services** in Indonesia, the following additional terms shall apply. In the event of any conflict between the following additional terms and the provisions of the main body of this Notice, the following terms shall prevail.

- Age, Parental and Guardian Consent. By using the Services, you represent that you are at least 21 years of age or married or not under guardianship. If you are below 21 years old and you are not married or under guardianship, you represent and warrant that you have obtained consent from your parent or legal guardian to use the Services. If you do not obtain consent from your parent or legal guardian, or your parent or guardian is not willing to give their consent, you must cease using the Services.

11. SINGAPORE-SPECIFIC TERMS

Where we rely on personal data provided by you (or your authorised representative), in order to ensure that your personal data is current, complete and accurate, please update us if there are changes to your personal data by informing our Data Protection Officer via email at dpo@ushareit.com.

12. Philippines-SPECIFIC TERMS

If you are using our **Services** in Philippines, the following provisions relating to requests for the provision of personal data shall apply:

You have the right to information, object, access, rectification, erasure or blocking, lodge complaints before the Philippines National Privacy Commission ("NPC"), damages and data portability. You can contact us at [dpo@ushareit.com]. We may need to verify your identity or your account details before we respond to your request to exercise one or more of the rights as data subjects under the laws, rules and regulations issued by NPC.

13. South Africa-SPECIFIC TERMS

If you are using our **Services** in South Africa, the following additional terms shall apply. You declare that you are over the age of 18. If you are below 18 years old, you represent and warrant that you have obtained consent from your parent or legal guardian

to use the **Services.** If you do not obtain consent from your parent or legal guardian, or your parent or guardian is not willing to give their consent, you must cease using the **Services**.

14. Egypt-SPECIFIC TERMS

If you are using our **Services** in Egypt, the following additional terms shall apply. You declare that you are over the age of 18. If you are under age of 18, you represent and warrant that you have obtained consent from your parent or legal guardian to use the Services, otherwise you must cease using the **Services.**